THE KING OF OUDH'S ESTATE

ARRANGEMENT OF SECTIONS

SECTIONS

1. Transfers of property by and to the Agent to the Governor General in Council, and institution of legal proceedings by him.
2. Consequences ensuring on death, resignation or removal Agent.

IndiaCode

ACT No. XIV OF 1888

PASSED BY THE GOVERNOR GENERAL OF INDIA IN COUCIL.

(*Received the assent of the Governor General on the* 26th *October, 1888*.)

An Act to make further provision for the Administration of the Estate of His late Majesty the King of Oudh.

WHEREAS Act XIX of 1887 (*an Act to provide for the Administration of the Estate of His late* Majesty the King of Oudh) enacts that the Governor General in Council shall have exclusive authority to act in the administration of the property nature left by His late Majesty the King of Oudh in regard to the settlement and satisfaction of claims against the estate of His late Majesty, and may make distribution of the remaining property or the proceeds thereof in such manner as he deems fit among the family and dependents of His late Majesty;

And whereas it is expedient to provide for the mode in which property may be transferred, and suits and other proceedings may be instituted, in the course of the administration of the estate of His late Majesty;

It is hereby enacted as follow: —

1. Transfers of property by and to the Agent to the Governor General in Council, and institution of legal proceedings by him.—Subject to the control of the Governor General in Council, the person for the time being holding the office of Agent to the Governor General in Council for the Affairs of the late King of Oudh and for the Purposes of Act XIX of 1887, may—

(*a*) in his own name and by his name of office dispose of any moveable and immoveable property of His late Majesty the King of Oudh in as full and effectual a manner as His Majesty could have disposed of it in his lifetime;

(*b*) by his name of office take a conveyance of any moveable or immoveable property in which His late Majesty had a beneficial interest; and

(*c*) by his name of office institute any suit or other proceeding in any Civil, Criminal or Revenue Court in connection with the possession of any moveable or immoveable property belonging to the estate of His late Majesty or the dispossession of any person of any such property, or the recovery of rents, debts or other moneys due to the estate, or otherwise in connection with the administration of the estate.

2. Consequences ensuring on death, resignation or removal Agent.—On the departure from British India, or the death, resignation or removal, of an Agent to the Governor General for the Affairs and Purposes aforesaid, the following consequences shall ensue, namely:—

(*a*) any moveable or immoveable property vested in him as such Agent shall become vested in his successor in office, and

(*b*) a suit or other proceeding instituted by his name of office may be continued by his successor in office in the same manner as if the departure or the death, resignation or removal had not occurred.